

1 ENGROSSED HOUSE
2 BILL NO. 4229

By: Kannady and Deck of the
House

3 and

4 Murdock of the Senate
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7 An Act relating to public buildings and public works;
8 allowing school districts or public schools to
9 declare an emergency for purposes of entering an
10 emergency contract; providing conditions that must
11 exist; limiting the scope of emergency declarations
12 to contracts and actions to restore occupancy and
13 permit return of displaced students; clarifying what
14 emergency declarations shall not apply to; requiring
15 emergency declarations to be approved by governing
16 board; requiring emergency declarations to be
17 documented and retained as part of public record;
18 clarifying section does not limit other granted
19 emergency contracting authority; providing for
20 codification; and providing an effective date.
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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 130.1 of Title 61, unless there
is created a duplication in numbering, reads as follows:

A. Notwithstanding any other provision of the Oklahoma
Competitive Bidding Act, a school district or public school may
declare an emergency for purposes of entering into an emergency

1 contract pursuant to Section 130 of this title only when one or more
2 of the following conditions exist:

3 1. No Occupancy. A school building or facility is not occupied
4 by students, faculty, staff, or the public due to damage, unsafe
5 conditions, or the failure or loss of essential building systems; or

6 2. Student Displacement. Students who would normally attend
7 classes in the affected building or facility have been displaced,
8 reassigned, or relocated to alternative instructional settings due
9 to damage, unsafe conditions, or the failure or loss of essential
10 building systems.

11 B. An emergency declared pursuant to this section shall be
12 limited solely to contracts and actions necessary to restore
13 occupancy of the facility or permit the return of displaced
14 students, including emergency repair, remediation, replacement of
15 essential systems, or temporary instructional facilities.

16 C. An emergency declaration under this section shall not apply
17 to:

18 1. Routine maintenance;

19 2. Planned renovations or capital improvements;

20 3. Projects undertaken for convenience, cost savings, or
21 project acceleration; or

22 4. Any condition in which the school facility remains occupied
23 and students are not displaced.

1 D. Any emergency declaration made pursuant to this section
2 shall:

3 1. Be approved by the governing board of the school district or
4 public school;

5 2. Be documented in writing, stating the specific facts
6 supporting the emergency declaration; and

7 3. Be retained as part of the public record in accordance with
8 the Oklahoma Open Records Act.

9 E. Nothing in this section shall be construed to expand or
10 limit the emergency contracting authority otherwise provided in
11 Section 130 of this title, but rather to define and limit the
12 circumstances under which a school district or public school may
13 invoke such authority.

14 SECTION 2. This act shall become effective November 1, 2026.

15 Passed the House of Representatives the 23rd day of March, 2026.

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Presiding Officer of the House
of Representatives

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20 Passed the Senate the _____ day of _____, 2026.

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Presiding Officer of the Senate